

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

July 30, 2026

8:30 a.m./1:30 p.m.

10. JOHN ABATE V. AMANDA CARROLL

PFL20180902

Petitioner filed a Request for Order (RFO), on February 27, 2026, seeking modification of child custody orders, an order for the minor to obtain a passport, elimination of the right of first refusal, and to alternate the child tax credit. The parties were referred to Child Custody Recommending Counseling (CCRC). Respondent was personally served on March 13, 2026. The Department of Child Support Services (DCSS) was not served.

Both parties appeared for CCRC and were unable to reach agreements. A report with recommendations was prepared and mailed to the parties on June 10, 2026.

Respondent has not filed a Responsive Declaration.

The court finds good cause to proceed with the custody requests only, as DCSS was not served and has standing on the tax credit issue. The court has read and considered the filings as outlined above. The court finds the recommendations as set forth in the June 10th CCRC report to be in the best interest of the minor. The court adopts the recommendations as its orders.

All prior orders not in conflict with these orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #10: THE COURT FINDS GOOD CAUSE TO PROCEED WITH THE CUSTODY REQUESTS ONLY. THE COURT HAS READ AND CONSIDERED THE FILINGS AS OUTLINED ABOVE. THE COURT FINDS THE RECOMMENDATIONS AS SET FORTH IN THE JUNE 10TH CCRC REPORT TO BE IN THE BEST INTEREST OF THE MINOR. THE COURT ADOPTS THE RECOMMENDATIONS AS ITS ORDERS.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR

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BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.